

25CV03595 Matthew Stahl v. State of California Department of Parks & Recreation

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-06-03

Motion: Defendant State of California Department of Parks & Recreation's Demurrer to Plaintiff's First Amended Complaint

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Tentative Ruling: Matthew Stahl v. State of California Department of Parks & Recreation

Case Number

25CV03595

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 06/03/2026 - 10:00

Nature of Proceedings

Defendant State of California Department of Parks & Recreation's Demurrer to Plaintiff's First Amended Complaint

Tentative Ruling

For Plaintiff Matthew Stahl: F. Javier Trujillo, Andrew Echavarria, Law Office of F. Javier Trujillo Inc.

For Defendant State of California by and through the Department of Parks & Recreation: Quintin Lucas, Victoria Nelson, California Attorney General's Office

RULING

For the reasons set forth below, the demurrer to Plaintiff's first amended complaint is sustained with leave to amend. Plaintiff shall file his second amended complaint, if any, no later than June 17, 2026.

Background

This action commenced on June 10, 2025, by the filing of the original complaint by Plaintiff Matthew Stahl against Defendants State of California, County of Santa Barbara, and City of Goleta.

On February 4, 2026, Plaintiff filed the operative first amended complaint ("FAC") against State of California for dangerous condition of public property.

Plaintiff alleges that on September 9, 2024, he was a business invitee of Defendant at El Capitan State Beach Park when he was injured as the result of walking to the beach on an unsafe walkway.

Defendant, State of California by and through the Department of Parks & Recreation (the "State") argues that it is immune from liability pursuant to Government Code section 831.4 and demurs to the FAC.

Plaintiff opposes the demurrer.

Analysis

Demurrer

"When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the Court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading." (Code Civ. Proc., § 430.30, subd. (a).) "Our consideration of the facts alleged includes 'those evidentiary facts found in recitals of exhibits attached to [the] complaint.' [Citation.]" (Alexander v. Exxon Mobil (2013) 219 Cal.App.4th 1236, 1250.)

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds:

"(a) The Court has no jurisdiction of the subject of the cause of action alleged in the pleading.

"(b) The person who filed the pleading does not have the legal capacity to sue.

"(c) There is another action pending between the same parties on the same cause of action.

"(d) There is a defect or misjoinder of parties.

"(e) The pleading does not state facts sufficient to constitute a cause of action.

"(f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible.

“(g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.

“(h) No certificate was filed as required by Section 411.35.” (Code Civ. Proc., § 430.10.)

“[A] Court must treat a demurrer as admitting all material facts properly pleaded, it does not, however, assume the truth of contentions, deductions or conclusions of law.” (Travelers Indem. Co. of Connecticut v. Navigators Specialty Ins. Co. (2021) 70 Cal.App.5th 341, 358, citing Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

“To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the Plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

Trail Immunity

“ ‘ “A public entity is generally liable for an injury caused by a dangerous condition of its property if the Plaintiff establishes that the property was in a dangerous condition at the time of the injury and the public entity had actual or constructive notice of the dangerous condition.” ’ ” [Citation.] However, the recreational trail immunity statute, [Government Code] section 831.4, provides that a public entity “ ‘is not liable for an injury caused by a condition of’ ” the following: “ ‘(a) Any unpaved road which provides access to fishing, hunting, camping, hiking, riding, including animal and all types of vehicular riding, water sports, recreational or scenic areas’ ”; or “ ‘(b) Any trail used for the above purposes.’ ” (§ 831.4, subds. (a) & (b).) “ ‘[S]ubdivisions (a) and (b) should be read together such that immunity attaches to trails providing access to recreational activities as well as to trails on which those recreational activities take place.’ ” [Citation.]” (Helm v. City of Los Angeles (2024) 101 Cal.App.5th 1219, 1226 (Helm).)

“ ‘ “The plainly stated purpose of immunity for recreational activities on public land is to encourage public entities to open their property for public recreational use, because ‘ “the burden and expense of putting such property in a safe condition and the expense of defending claims for injuries would probably cause many public entities to close such areas to public use.” ’ ” ” [Citation.] “ ‘Trail immunity applies to all manner of defects in the trail’s condition.’ ” ([Citation]; see Amberger-Warren v. City of Piedmont (2006) 143 Cal.App.4th 1074, 1084 (Amberger-Warren) [“ ‘It is well established that the immunity covers negligent maintenance of a trail’ ”]; Treweek v. City of Napa (2000) 85 Cal.App.4th 221, 227 [“ ‘It is . . . clear that the state is absolutely immune from liability for injuries caused by a physical defect of a trail’ ”].) (Helm, supra, 101 Cal.App.5th at p. 1226.)

By way of his opposition, Plaintiff does not deny that he was utilizing a “trail,” at El Capitan State Beach Park, when he was injured. Rather, Plaintiff argues that the immunity statute is inapplicable because Plaintiff was not “recreating” at the time of his injury. Plaintiff argues that he was a volunteer for beach clean-up day.

Plaintiff’s argument regarding not “recreating” is without merit. Government Code section 831.4 does not create any exception for a volunteer. Courts have consistently found that persons utilizing recreational trails for purposes other than recreation are barred from bringing actions against public entities for any defects in the condition of trails and walkways. (see Montenegro v. City of Bradbury (2013) 215 Cal.App.4th 924; Arvizu v. City of Pasadena (2018) 21 Cal.App.5th 760; Burgueno v. Regents of University of California (2015) 243 Cal.App.4th 1052.)

“ ‘[T]o fulfill its purpose, trail immunity must extend to claims arising from the design of a trail, as well as its maintenance.’ ” [Citations.] “ ‘[L]ocation, no less than design, is an integral feature of a trail, and both must be immunized for the same reasons.’ ” [Citation.] This immunity is absolute. [Citation.]” (Leyva v. Crockett & Co., Inc. (2017) 7 Cal.App.5th 1105, 1109, italics added.)

The demurrer will be sustained. Plaintiff requests that, should the Court sustain the demurrer, leave to amend be granted.

Although the Court has doubts that Plaintiff will be capable of amending the FAC to state facts sufficient to constitute a cause of action against the State, he will be given leave to amend.

Judges

Judge Thomas Anderle

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